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JUDGMENT SHEET.

IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT

Election Petition No.02 of 2018

MUSHTAQ AHMED.

Versus.

SARDAR AFTAB AKBAR KHAN, ETC.

JUDGMENT.

Date of hearing: **08.02.2019**

Petitioner by: Sardar Abdul Raziq Khan, Advocate.

Respondent M/s Muhammad Taimoor Malik &
No.1 by: Muhammad Wajid Hussain Mughal,
Advocates.

Mirza Viqas Rauf, J. This petition under Section 139 of The Elections Act, 2017 (hereinafter referred as “The Act, 2017”) calls in question the candidature of respondent No.1 (hereinafter referred as “respondent”) namely Sardar Aftab Akbar Khan, who was declared as returned candidate in the General Elections, 2018 from PP-23, Chakwal (hereinafter referred as “Constituency”).

2. Briefly, the facts necessary for adjudication of instant petition are that the petitioner namely Mushtaq Ahmad contested the General Elections, 2018 from the “Constituency” as a nominee of Pakistan Muslim League Nawaz (P.M.L.N) whereas “respondent” participated as a candidate of Pakistan Tehrik-e-Insaf (P.T.I). At the end of poll, the “respondent” was declared as Returned Candidate and he was notified as Member Provincial Assembly vide notification dated 7th August, 2018. This petition questions the candidature of “respondent” on multiple grounds. On this petition, notice was issued to the respondents and in response thereof, the “respondent” arranged his representation and submitted reply. On the last date i.e. 1st February, 2019, learned counsel for the “respondent” raised

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certain preliminary objections on the maintainability of the instant petition, which reads as under: -

At the very outset, learned counsel representing the respondent No.1 raises preliminary objections on the maintainability of this petition. While making reference to Section 142 of The Elections Act, 2017, learned counsel submits that the instant petition was supposed to be accompanied with a receipt showing that the petitioner has deposited at any branch of the National Bank of Pakistan or at a Government Treasury or Sub-Treasury in favour of the Commission, under the prescribed head of account, as security for the costs of the petition, such amount as may be prescribed. Secondly, that the petition lacks full particulars as contemplated in Sub-Section 1(b) of Section 144 of the Act *ibid* and it also lacks the verification as is required in Sub-Section 4 of the said Act.

3. Mr. Muhammad Taimoor Malik, Advocate for the “respondent”, while proceeding with his submissions, contended that in terms of Section 142 of “The Act, 2017”, the petitioner was obliged to append a receipt showing that he has deposited at any branch of the National Bank of Pakistan or at a Government Treasury or Sub-Treasury in favour of the Commission, under the prescribed head of account as security for the costs of the petition but no such deposit was made. He next contended that the petition lacks necessary particulars of corrupt or illegal practice as is required under Section 144 of “The Act, 2017”. Learned counsel submitted that verification is not in the prescribed form and petition is even not verified in accordance with law. It is emphatically argued that the election petition is not maintainable in view of these material defects.

4. Conversely, Sardar Abdul Raziq Khan, Advocate for the petitioner, while responding the adversary, submitted that non-deposit of security was due to ignorance. He added that even otherwise, in terms of Rule 140 The Election Rules, 2017 (hereinafte referred as “The Rules, 2017”), the petitioner has not been informed about the deficiencies in the petition and as such the petition is proceedable. Learned counsel contended that verification was made strictly in accordance with law and mere form of verification cannot be made basis for rejection of petition. Learned counsel further contended that when once a tribunal has proceeded with the election petition and not rejected it summarily, then it cannot be dismissed now without formal trial. He also added that reply filed by “respondent” is not within prescribed time.

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5. Heard. Record perused.

6. Before attending the question of maintainability of the petition, it would be advantageous to first examine as to whether a tribunal is precluded to reject the election petition summarily, if once it is not rejected under Section 145 (1) of “The Act, 2017”. Needless to observe that Section 145 of “The Act, 2017” lays down a procedure for the trial of election petition. In terms of sub-section (1) of Section 145, the election tribunal is vested with the power to summarily reject the election petition if it is not in conformity with the provisions of Section 142, 143 or 144 of “The Act, 2017”. As per sub-section (2), if an election petition is not rejected under sub-section (1), the Election Tribunal shall issue notices to each of the respondents through the modes provided therein. The answer to the question framed hereinabove can easily be ascertained from the “The Act, 2017”. Section 148 provides a procedure before the Election Tribunal for trial of petitions, which reads as under: -

148. Procedure before Election Tribunal for trial of petitions.—

(1) Subject to this Act and the Rules, the trial of an election petition, shall be as nearly as possible, in accordance with the procedure applicable under the Code of Civil Procedure, 1908 (Act V of 1908) to the trial of suits and the Qanun-e-Shahadat Order, 1984 (President’s Order. No. X of 1984).

(2) The Election Tribunal shall, unless it directs otherwise for reasons to be recorded, order any or all the facts to be proved or disproved by affidavit and may, for the purposes of expeditious disposal, apply such other procedure as the circumstances of the case may warrant.

(3) The Qanun-e-Shahadat Order, 1984 (President’s Order. No.X of 1984), shall apply to the trial of an election petition unless otherwise provided under this Act.

(4) On filing of reply by the respondent, the Election Tribunal may, with the consent of parties, fix specific dates for trial and disposal of the petition, providing for continuous hearing without adjournment.

(5) If the parties do not consent to specific dates under sub-section (4), the Election Tribunal shall proceed with the trial of the election petition on day-to-day basis and no adjournment shall be granted to any party for more than seven days and that too on payment of such costs as the Tribunal may determine and the election petition shall be decided within one hundred and twenty days of its filing.

(6) If an election petition is not finally decided within one hundred and twenty days—

(a) further adjournment sought by a party shall be granted only on payment of special costs of ten thousand rupees per adjournment and adjournment shall not be granted for more than three days;

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(b) if the Election Tribunal itself adjourns the election petition, it shall record reasons for such adjournment;

(c) where the delay in the proceedings is occasioned by any act or omission of a returned candidate or any other person acting on his behalf, the Election Tribunal itself or on application of the aggrieved party, may, after issuance of show cause notice to the returned candidate and within fifteen days of the date of show cause notice, order that the returned candidate has ceased to perform the functions of his office either till the conclusion of the proceedings or for such period as the Tribunal may direct; and

(d) if a serving Judge is the Election Tribunal, the Commission shall request the Chief Justice of the High Court that no judicial work other than election petitions should, to the extent practicable, be entrusted to him till the final disposal of the election petitions.

(7) The Election Tribunal may, for reasons to be recorded, refuse to examine any witness if it is of the opinion that the evidence of such witness is not material for the decision of the election petition or that the party on whose behalf such witness has been summoned has done so on frivolous grounds or with a view to delaying the proceedings.

(8) Notwithstanding anything contained in any other law, no document shall be inadmissible in evidence at the trial of an election petition only on the ground that it is not properly stamped or registered under the relevant law.

(9) A witness shall not be excused from answering any question as to any matter in issue or relevant to a matter in issue in the trial of an election petition upon the ground that the answer to such question may incriminate or tend to incriminate him or that it may expose or tend to expose him to any penalty or forfeiture, but a witness shall not be required or permitted to state for whom he has voted at an election.

(10) A witness who truly answers all questions which he is required to answer may be granted a certificate of indemnity by the Election Tribunal and an answer given by him to a question put by or before the Tribunal shall not, except in the case of any criminal proceeding for perjury in respect of his evidence, be admissible in evidence against him in any civil or criminal proceedings.

(11) A certificate of indemnity granted to any witness under sub-section (10) may be pleaded by him in any court and shall be a full and complete defence to or upon any charge under Chapter IXA of the Pakistan Penal Code, 1860 (Act LXV of 1860) or under this Act, arising out of the matters to which such certificate relates, but it shall not be deemed to relieve him from any disqualification in connection with an election imposed by any law.

(12) The Election Tribunal shall direct any party to pay reasonable expenses incurred by any person in attending the Tribunal to give evidence and shall, unless the Tribunal otherwise directs, be deemed to be part of the costs.

(Underlining supplied for emphasis)

Bare reading of the above referred provision of law clearly manifests that the Tribunal has to proceed with the election petition in accord with the procedure as nearly as possible in accordance with the procedure applicable under the Code of Civil Procedure, 1908 (hereinafter referred as “Code”) to the trial of suits unless the Act or Rules prescribe

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otherwise. Law thus places no embargo or restriction on the powers of the Tribunal to reject the election petition at any stage if it suffers with material legal flaws. The Tribunal when once reaches at the conclusion that petition is not proceedable, it cannot wait till the culmination of the proceedings through a regular trial. The mandate of law is to nip the evil in the bud. The “Code” also bestows power upon the Civil Court to reject the plaint summarily in terms of Order VII Rule 11, if it suffers with the flaws mentioned in the said provision. The Tribunal, thus, can proceed on the same paramateria and to reject the election petition at any stage. The Tribunal is even vested with the power to adopt any other procedure for the expeditious disposal depending upon the circumstances of the case. The provisions of “The Act, 2017” are unequivocal and clear to this extent that a petitioner while presenting the election petition, is obliged to adhere the mandate of Section 142, 143 and 144 of “The Act, 2017”. Non-compliance of any of the said provisions renders automatic rejection of the election petition. In terms of section 142 of “The Act, 2017”, it was obligatory for the petitioner to append a receipt showing that he has deposited at any branch of the National Bank of Pakistan or a Government Treasury or Sub-Treasury in favour of the Election Commission under the prescribed head of account as security for the costs of the petition such amount as may be prescribed. Admittedly election petition was not accompanying any such receipt.

7. So far contention of learned counsel for the petitioner that the petitioner was ignorant about the amount and head of account and despite his efforts he was not advised by the office properly to this extent, it is observed that ignorance of law is no excuse. In order to carry out the purposes of “The Act, 2017”, “The Rules, 2017” were framed. Rule-139 has prescribed the procedure of presentation of Election Petition. As per Sub-Rule 4, the petition shall be accompanied by a receipt showing that the petitioner has deposited at any branch of National Bank of Pakistan as security for the costs of the petition, a sum of twenty thousand rupees in the head of account “C03-Miscellaneous Receipts, C038-Others, C03870- Others (Election Receipts). Since the amount as well as the head of account

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was duly notified in the Rules itself, so contention of learned counsel for the petitioner is highly misconceived and ill-founded.

8. Next comes the question of verification of the election petition. The mechanism to this effect is provided under Section 144 (4) of “The Act, 2017”, which prescribes that the election petition and its annexures shall be signed by the petitioner and the petition shall be verified in the manner laid down in the “Code” for the verification of pleadings. Order VI Rule 15 of “Code” ordains the manner of verification of pleadings in the following manner: -

15. **Verification of pleadings.**---(1) Save as otherwise provided by any law for the time being in force, every pleading shall be verified on oath or solemn affirmation at the foot by the party or by one of the parties pleading or by some other person proved to the satisfaction of the Court to be acquainted with the facts of the case.

(2) The person verifying shall specify, by reference to the numbered paragraphs of the pleading, what he verifies of his own knowledge and what he verifies upon information received and believed to be true.

(3) The verification shall be signed by the person making it and shall state the date on which and the place at which it was signed.

There is no second opinion that the above said provision of law is in parameteria to Section 55 (3) of The Representation of The People Act, 1976. In somewhat similar circumstances, the Hon’ble Supreme Court of Pakistan, in the case of “Lt. Col. (Rtd.) GHAZANFAR ABBAS SHAH v. Mehr KHALID MEHMOOD SARGANA and others” (2015 SCMR 1585), while dealing with the matter in issue, held as under: -

“5. With regards to verification of election petitions on oath, it is clear from the provisions of section 55(3) of the ROPA that an election petition has to be verified in accordance with the provisions of Order 6 Rule 15, C.P.C. which provide the basics as to how pleadings have to be verified, what shall be the contents of the verification of pleadings and how they have to be attested by the oath commissioner when read with other relevant provisions of law. Be that as it may, in addition to the law cited by both the sides (from some other dicta), it is conclusively settled by this Court that verification of an election petition is mandatory and a petition which lacks proper verification shall be summarily dismissed by the tribunal, even if the respondent has not asked for or prayed for its dismissal.

In reference to the above, it shall be advantageous to reproduce the following part of the judgment reported as Zia-ur-Rehman supra wherein it has been categorically held:--

"8. Every election petition and every schedule or annexure to the election petition has to be signed by the petitioner and verified in the manner laid down in Civil Procedure Code. Rule 15 of Order VI of

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C.P.C. lays down the procedure of verification, which reads as under:--

15. (1) Save as otherwise provided by any law for the time being in force, every pleading shall be verified [on oath or solemn affirmation] at the foot by the party or by one of the parties pleading or by some other person proved to the satisfaction of the Court to be acquainted with the facts of the case.

(2) The person verifying shall specify, by reference to the numbered paragraphs of the pleading, what he verifies of his own knowledge and what he verifies upon information.

(3) The verification shall be signed by the person making it and shall state the date on which and the place at which it was signed.

9. The penal consequence of non-compliance with sections 54 and 55 of the Representation of the People Act is provided in section 63 of the Representation of the People Act, which reads as follows:--

63. Dismissal of petition during trial.---The Tribunal shall dismiss an election petition, if:--

(a) the provisions of section 54 or section 55 have not been complied with: or

(b) if the petitioner fails to make the further deposit required under subsection (4) of section 62."

10. Admittedly both the election petitions filed by the respondents in the afore-mentioned appeals were not verified on oath in the manner prescribed under the afore-quoted provision. If the law requires a particular thing to be done in a particular manner it has to be done accordingly, otherwise it would not be in-compliance with the legislative intent. Non-compliance of this provision carries a penal consequence in terms of section 63 of the Representation of the People Act whereas no penal provision is prescribed for non-compliance with Order VI, Rule 15 of the Civil Procedure Code. The effect of non-compliance of section 55 of the Representation of the People Act, 1976 came up for consideration before this Court in *Iqbal Zafar Jhagra v. Khalilur Rehman* (2000 SCMR 250) wherein at page 290 it was candidly held that "the verification of pleadings has been provided under Order VI, Rule 15, C.P.C. which when read with section 39, C.P.C., clearly shows that the pleadings are to be verified on oath and the oath is to be administered by a person, who is duly authorized in that behalf. It is an admitted position that the petition filed by Syed Iflikhar Hussain Gillani though mentions that it is on oath, the oath was neither verified nor attested by a person authorized to administer oath and as such it could not be said that requirements of section 36 of the Act were complied with. We have considered the reasons given by the learned Tribunal in holding that the petition filed by Syed Iflikhar Hussain Gillani did not comply the provisions of section 36 of the Act and are of the view that these reasons do not suffer from any legal infirmity."

6. Taking into account the verification of the election petition independent of the affidavit, it has been conspicuously noticed that there is no date or place mentioned in the verification i.e. at what date and what place the verification was made by the appellant. The two stamps of the oath commissioner, Lahore Cantt, affixed at the bottom of the verification also do not postulate the date on which the verification was made by the election petitioner. Besides, it is not reflected from the verification whether the appellant was present at the time of verification before the oath commissioner because he

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has not been identified with reference to his national identity card, rather by some Advocate, whose name and particulars are not even mentioned on the said verification. Therefore on account of the deficiencies identified above, we hardly find the verification to be valid in terms of spirit of provisions of section 55(3) of the ROPA and in line with the law laid down by this Court in various dicta. Resultantly, we have no hesitation to hold that the verification is not in accord with the law.

7. We shall now turn to the second limb of the proposition i.e. whether the affidavit enclosed with the election petition was sufficient for establishing that the election petition has been duly verified in accordance with law or not. For this purpose, so as to determine the prerequisites of a valid affidavit, the provisions of High Court Rules and Orders, Chapter No.12, Volume No.IV, Rules Nos.11, 12, 14, 15 and 16 are reproduced below:--

"11. Identification of deponent.---Every person making an affidavit shall, if not personally known to the Court, Magistrate or other officer appointed to administer the oath or affirmation, be identified to such Court, Magistrate or officer by some person known to him; and such Court, Magistrate or officer shall specify at the foot of the affidavit, the same and description of the person by whom the identification is made, as well as the time and place of the making of the affidavit.

12. Mode of attestation.--The Court, Magistrate, or other officer as aforesaid, before whom an affidavit is made, shall certify at the foot of the affidavit the fact of the making of such affidavit before him, and shall enter the date and subscribe his signature to such certificate, and shall, for the purpose of identification, mark date, and initial every exhibit referred to in the affidavit. The name of the verifying authority must be signed in full, and care must be taken that his proper designation as a Civil Court or Magistrate is added.

14. Attesting Officer's duty.--If any person making an affidavit appears to the Court, Magistrate or other officer administering the oath or affirmation, to be ignorant of the language in which it is written, or to be illiterate, or not fully to understand the contents of the affidavit, such Court, Magistrate or officer shall cause the affidavit to be read and explained to him in a language which both he and such Court, Magistrate or officer understand; either doing so himself, or causing another person to do so in his presence. When an affidavit is read and explained as herein provided, such Court, Magistrate or other officer as aforesaid shall certify in writing at the foot of the affidavit that it has been so read and explained, and that the declarant seemed perfectly to understand the same at the time of making it.

15. Attesting, signing and verification or affidavit.---Every affidavit shall be signed or marked and verified at foot by the declarant and attested by the Court, Magistrate or other officer administering the oath or affirmation, the verification, by the declarant shall be in one of the forms attached thereto, and shall be signed or marked by the declarant the attestation of the Court, Magistrate or other officer administering the oath or affirmation shall also be in the form prescribed below.

16. Manner of administering oath to deponent.--In administering an oath or affirmation to the declarant in the case of any affidavit under the Code of Civil Procedure, the Court, Magistrate or other officer appointed in that behalf shall be guided by the rules under the Indian Oaths Act, 1878, printed in Part A of this Chapter and shall follow the form of verification by oath or affirmation thereto appended

Election Petition No.02 of 2018**1-FORM OF VERIFICATION OF OATH OR
AFFIRAMTION**

(Vide paragraph 15 above)

Oath.

I solemnly swear that this may declaration is true, that it conceals nothing, and that no part of it is false..... so help me God.

Affirmation.

I solemnly affirm that this my declaration is true, that it conceals nothing and that no part of it is false.

II-FORM OF CERTIFICATE

(vide paragraphs 12, 14 and /5 above)

Certified that the above was declared on..... (here enter oath)/affirmation as the case may be) before me this.....(date) day of.....(month).....(of 19 , at (place) in the district of (name of district)..... by (full name and description of declarant) who is..... here enter "personally known to me" or identified at (time and place of identification) by (full name and descriptor: of person marking the identification), who is personally known to me".

(Full Signature) A. B.

(Officer) District Judge (or as the case may be) of
.....

II-A

The exhibits marked A.B.C. (as the case may be) above referred to are annexed hereto under this date and my initials.

Certified further that this affidavit has been read and explained to (name) the declarant who seemed perfectly to understand the same at the time of making thereof. "

From the High Court Rules and Orders reproduced in the preceding para, it is clear to our mind that an affidavit has to meet the following requisites:

1. Identification of deponent (Rule 11)
2. Particulars of deponent and identifier to be mentioned at the foot of the affidavit (Rule 11)
3. Time and place of the making of the affidavit to be specified (Rule 11)
4. Certification by Court/Magistrate/Other Officer at the foot of the affidavit that such affidavit was made before him (Rule 12)
5. Date, Signature and name of office and designation of the Court/ Magistrate/Other Officer to be subscribed underneath the Certification (Rule 12)
6. Every exhibit referred to in the affidavit to be dated and initialed by the Court/Magistrate/Other Officer (Rule 12)

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7. Where deponent of an affidavit does not understand the contents of an affidavit, the Court/ Magistrate/Other officer administering oath must read out the contents of an affidavit to such person so that he understands. Where such is the case, the Court/ Magistrate/Other officer shall note at the foot of the affidavit that the affidavit has been read out to the deponent and he understands its contents (Rule 14)

8. Deponent to sign/mark and verify the affidavit and the Court, Magistrate or other officer administering the oath or affirmation to attest the affidavit (Rule 15)

9. Oath to be administered by the Court/Magistrate/Other officer in accordance with the Indian Oaths Act, 1878 and affidavit to be verified by deponent and attested by Court/Magistrate/Other officer on forms appended thereto (Rule 16)

The format of an affidavit is as has been mentioned in the law reproduced supra. But in the affidavit in question, it is conspicuous that the following essential elements are missing:--

- (a) date on which and the place where the verification was made, have not been specified;
- (b) no date has been mentioned on the stamp(s) of attestation fixed by the Oath Commissioner;
- (c) it has also not been mentioned that the appellant was administered oath by the Oath Commissioner before the attestation was made;
- (d) whether the appellant was duly identified before the Oath Commissioner is another important question the answer to which is also not clear from the said verification;
- (e) it does not appear from the affidavit that appellant was identified with reference to his ID card which is the ordinary, usual and general course for identification of a person or even by an Advocate; and
- (f) no ID Card Number is given; the identification does not seem to have been made; the particulars of the identifier are also conspicuously missing.

This affidavit, therefore, can hardly be considered to be verification of the election petition in terms of the law. To reiterate the reasons, neither have the date and place of attestation been specified nor was the appellant properly identified. With regard to what a valid affidavit should contain, we also draw support from the judgment of the Lahore High Court in the case reported as Bashir Ahmed v. Abdul Wahid (PLD 1995 Lahore 98), which in our view is good law. The relevant portion of the said judgment reads as follows:--

"The main requirements of the affidavit according to the High Court (Lahore) Rules and Orders, Volume IV, Part B, Chapter 12-B, Rules 8, 9, 14 and 15 are:--

- (i) the name of the Court, title of the proceedings;
- (ii) subject of the suit or petition;
- (iii) name of the deponent, the date and place;

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(iv) the affidavit is to be divided into paragraphs which shall be numbered consecutively and shall be confined to distinct portion of the subject;

(v) the deponent, other than the party to the suit, shall be described in such a manner as would serve to identify him clearly i.e. full name, father's name, profession or trade and place of his residence;

(vi) the declarant in affidavit while referring the facts within his knowledge must do so directly and positively using the words 'I affirm' or 'I make oath and say';

(vii) when making reference as to the information obtained from others, the declarant must use the expression 'I am informed', and should add 'and verily believe it to be true', or he may state the source from which he received such information. Every affidavit shall be signed or thumb-marked; and

(viii) it shall be verified in accordance with the verification in the form given in Rule 16 of the High Court (Lahore) Rules and Orders. The verification shall be signed and thumb-marked by the declaration. The affidavit shall be attested by the Oath Commissioner.

One can divide the affidavit into following three parts in accordance with the above requirements:--

- (1) name of the Court, title and subject of the proceedings and name etc. of the deponent;
- (2) declaration of facts sought to be proved by the affidavit duly signed by the declarant; and
- (3) verification duly signed by the deponent and attested by the Oath Commissioner."

This affidavit, even if considered to be verification of the election petition in terms of the Sardarzada Zafar Abbas supra, as mentioned earlier, can hardly be held to be proper verification. It may be pertinent to mention here, that neither does the affidavit in the instant case fulfill the requirements in the High Court Rules and Orders supra nor does it meet the essentials laid out in the judgment reported as Bashir Ahmad supra. We, therefore, are of the candid view that the affidavit in question is a flawed one.

It is also relevant to note here that in an ordinary lis (suit etc.) requiring verification and support by an affidavit, if the verification or affidavit is flawed, such lapse may be considered an irregularity and be treated as a curable defect, but we are not laying down any hard and fast rule, because the matter before us is not pertaining to ordinary litigation, however in the case of an election petition the law is very stringent and imperative. Therefore if the election petition has not been verified in accordance with law, this cannot be treated as a curable defect and the Election Tribunal particularly after the lapse of the period of limitation prescribed for filing of election petition, cannot permit the election petitioner to cure the same.

8. The question now which remains for resolution is whether the omission on part of the Oath Commissioner in mentioning, in the attestation of verification or the affidavit, if the oath had been administered to the appellant/deponent, shall have the effect of invalidating the election petition. As regards the above, suffice it to say that according to the provisions of Article 129, illustration (e) of the Qanun-e-Shahadat Order, 1984, there is presumption of correctness attached to an official act and it could not be controverted by the learned counsel for the respondent that the oath commissioner who is appointed

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by the respective High Courts under the law shall be performing the official acts for which he was appointed. However, he has stressed that the administration of oath before attestation by the Oath Commissioner should not be presumed in this case rather should reflect from the contents of attestation.

We have applied our mind to this aspect of the matter and hold that in order to meet the real object and the spirit of the election laws which require verification on oath, in an ideal situation, the Oath Commissioner at the time of verification of the petition etc. and also the affidavit, must record and endorse verification/attestation that the oath has been actually, physically and duly administered to the election petitioner/deponent. But as the law has not been very clear till now, we should resort to the principle of presumption stipulated by Article 129(e) *ibid* in this case for avoiding the knock out of the petition for an omission and lapse on part of the Oath Commissioner. But for the future we hold that where the election petition or the affidavit is sought to be attested by the Oath Commissioner, the election petitioner shall insist and shall ensure that the requisite endorsement about the administration of oath is made, otherwise the election petition/affidavit shall not be considered to have been attested on oath and thus the election petition shall be liable to be, *inter alia*, dismissed on the above score. We consciously and deliberately neither apply this rule to the instant case nor any other matter pending at any forum (election tribunal or in appeals).

Resultantly, we are not inclined to accept the plea of the learned counsel for the respondents that the omission on part of the oath commissioner must be made the basis of dismissal of the petition of the appellant. This, as we have mentioned above, should be taken into account in case of future election petitions, i.e. filed after enunciation of the law herein laid down.”

9. After having an overview of above referred principles, it can safely be held that election petition lacks necessary verification. Section 144 (1)(b) of “The Act, 2017” casts a duty upon the petitioner to narrate full particulars of any corrupt or illegal practice or other illegal act alleged to have been committed, including names of the parties who are alleged to have committed such corrupt or illegal practice or illegal act and the date and place of the commission of such practice or act, which aspect is also clearly lacking in the instant petition.

10. Learned counsel for the petitioner has though relied upon Rule 140 of “The Rules, 2017” but it is observed that whenever there is conflict between basic statute and the rules framed thereunder, the provisions of Act would prevail. Law is well settled that rules, notifications promulgated or issued in pursuance to the powers conferred under the basic statute cannot run in conflict with the statute itself. Whenever there is a conflict between the provisions of rules, notifications and the statute whereunder those are framed and promulgated, the latter will prevail. Reference in this context can be made to “NATIONAL ELECTRIC POWER REGULATORY AUTHORITY versus FAISALABAD ELECTRIC SUPPLY COMPANY

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LIMITED”(2016 SCMR 550),“SUO MOTU CASE NO.13 OF 2009”(PLD 2011 Supreme Court 619) and Civil Appeals Nos.2296 to 2412 of 2001“FEDERATION OF PAKISTAN through Secretary, Ministry of Finance and others versus Haji MUHAMMAD SADIQ and others”(PLD 2007 Supreme Court 133).

11. Adverting to the contention of learned counsel for the petitioner that reply was not submitted within prescribed time, suffice to observe that though Rule 142 of “The Rules, 2017” envisages that the respondent shall upon the receipt of notice of the petition from the petitioner within seven days file his written statement together with all documents relied upon by him to rebut the allegations in the election petition but no penal consequences are provided in case of non-compliance of the provision, so Rule is directory but not mandatory in nature. Guidance in this respect, if needed, can be sought from “Maulana NUR-UL-HAQ v. IBRAHIM KHALIL” (2000 SCMR 1305).

12. For the foregoing reasons, instant petition is **rejected** with no order as to costs.

**(MIRZA VIQAS RAUF)
JUDGE**

Zeeshan

Approved For Reporting.